

20STCV47763 20STCV47763

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-17

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Case Number: 20STCV47763 Hearing Date: September 17, 2026 Dept: 25

HEARING DATE: Thurs., September 17, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Pensco

Trust Company LLC v. Bobritsky, et al.

COMP FILED: 12-14-20

CASE NUMBER: 20STCV47763

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL RESPONSE TO REQUEST TO INSPECT WRITINGS TO
ENFORCE MAY 2, 2024 ORDER

MOVING PARTY:

Plaintiff Pensco Trust Company LLC

RESP. PARTY: None

MOTION TO COMPEL RESPONSES TO REQUESTS
FOR DOCUMENTS; REQUEST FOR SANCTIONS

(Code Civ. Proc., §§ 708.020, 2031.300)

TENTATIVE RULING:

The Court GRANTS Pensco Trust Company LLC's motion to
compel responses to the requests for inspection. Felix and Yelena are ordered to served

verified responses without objections to the requests within 30 days of this order.

Felix and Yelena must pay Pensco \$2,198.41, jointly and severally, within 30 days of this order.

Pensco is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 16, 2026 ☐ Late ☒

None

REPLY: None

filed as of September 16, 2026 ☐ Late ☒

None

ANALYSIS:

Pensco Trust Company LLC sued Felix Bobritsky, Yelena Bobritsky, Cooper Dietz, Daniala Bobritsky, and Shoshanah Bobritsky for disobedience of subpoenas and court orders.

Shoshanah was dismissed; default judgment was entered against Felix, Yelena, Daniala, and Dietz; and this action was reclassified as a civil limited jurisdiction matter.

On May 2, 2024, this Court granted Pensco's motion to compel Felix and Yelena to respond to interrogatories to enforce the judgment and imposed monetary sanctions against them both in the amount of \$1,823.91. Felix and Yelena failed to obey the Court's order. Pensco then propounded requests for inspection to enforce the May 2, 2024 order, Felix and Yelena failed to respond, so Pensco now moves to compel responses to the requests

for inspection.

A monetary sanctions order has the force and effect of a

money judgment and is enforceable under the Enforcement of Judgments Law. (Code Civ. Proc., §§ 680.230, 680.270; Newland

v. Superior Court (1995) 40 Cal.App.4th 608, 615; Lucky United

Properties Investment, Inc. v. Lee (2010) 185 Cal.App.4th 125, 144.) A judgment creditor may demand a judgment

debtor produce, permit to inspect, and copy a document if the demand requests

information to aid in the enforcement of the money judgment, in the manner

prescribed in Code of Civil Procedure section 2031.010 et seq. (Code Civ. Proc., § 708.030, subd. (a).) The judgment debtor must answer within the

time prescribed in Code of Civil Procedure section 2031.030 et seq. (Id., § 708.030, subd. (a).)

A party must respond to requests for production of

documents within 30 days after service.

(Code Civ. Proc., § 2031.260, subd. (a).) If a party fails to do so, it waives the

right to object, and the propounding party may move for an order compelling

responses to the requests for production of documents. (Id., § 2031.300, subs. (a), (b).)

Pensco served Felix and Yelena with the requests for

inspection in July 2026. To date, no

responses have been served. Felix and

Yelena have not filed an opposition indicating otherwise. Accordingly, the Court GRANTS Pensco's

motion. Felix and Yelena are ordered to

served verified responses without objections to the requests for inspection

within 30 days of this order.

Felix and Yelena must also pay sanctions for causing

Pensco to compel responses to the requests for inspection. (Code Civ. Proc., § 708.030, subd. (c); id.,

§ 2031.300, subd. (c).) Pensco requests \$2,198.41 from Felix and

Yelena, reflecting 2.5 hours of counsel's work at \$850.00 per hour plus \$73.41

in filing fees. This request is

reasonable. Felix and Yelena must pay Pensco

\$2,198.41, jointly and severally, within 30 days of this order.

Pensco is to give notice.